

Independent feeder — third consumer not to be reconnected pending writ

High Court of Judicature at Allahabad · Division Bench · 12 July 2010 · WRIT - C No. 38346 of 2010 · **Interim: third consumer not to be reconnected to independent feeder**

HEADNOTE

M/s Om Cold Storage, supplied on an independent feeder, alleged that DVVNL had connected respondent no. 3 to that feeder without consent contrary to clause 3.4 of the U.P. Electricity Supply Code, 2005, and after disconnection following a 29.04.2010 representation intended to reconnect. Without deciding clause 3.4, the Division Bench directed that if respondent no. 3 had already been disconnected, the supply shall not be reconnected. The writ remains pending.

FACTUAL SUMMARY

M/s Om Cold Storage, a DVVNL consumer, was supplied on an independent feeder. It alleged that respondent no. 3 was connected to that feeder without its consent, contrary to clause 3.4 of the U.P. Electricity Supply Code, 2005. After a representation dated 29 April 2010 the third connection was disconnected. Apprehending reconnection, the petitioner filed this writ. On 12 July 2010 the licensee sought time for instructions. Subsequent orders through 3 August 2026 only continued the listing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::3.4

independent feeder — connecting another consumer

HOLDING

If respondent no. 3's supply on the petitioner's independent feeder had already been disconnected, it shall not be reconnected pending further orders. The Court recorded the plea under clause 3.4 that no other consumer may be connected to an independent feeder without the original consumer's consent, but did not decide that plea. The writ remains pending. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 3.4 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 BARS CONNECTING ANOTHER CONSUMER TO AN INDEPENDENT FEEDER WITHOUT THE ORIGINAL CONSUMER'S CONSENT

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NOT DECIDED — MERITS OF THE WRIT PETITION

Still pending; last listed for 01.09.2026